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SACRAMENTO

McGuire’s landmark Offshore Wind Expediting Act Signed by Gov. Newsom

Senate President Designee Mike McGuire’s groundbreaking legislation to expedite offshore wind development to help meet the Golden State’s long-term electricity demand and nation-leading climate goals has been signed into law by Governor Newsom.

“Today’s action by Governor Newsom ensures California will move with speed and precision to deploy offshore wind. The signing of SB 286 shows the Golden State is serious about bringing on desperately needed new renewable power generation and meeting the state’s nation-leading climate goals and energy needs. This bill will expedite the state-side offshore wind permitting process eliminating a staggering 5 years off of the permitting timeline all while protecting California’s coastal environment and storied fishing fleet. The quicker we get offshore wind infrastructure built off the Golden State’s Coast, the faster we’ll get family sustaining jobs propped up and moving,” McGuire said.

SB 286 — the Offshore Wind Expediting Act — will accelerate the offshore wind permitting process through the State Coastal Commission and State Lands Commission. At the same time, it will ensure environmental safeguards will remain in place, California’s storied fishing fleet interests are protected, and will advance resources that benefit communities and develop family-sustaining jobs through career training programs.

In addition to desperately needed streamlining, for the first time, SB 286 mandates state agencies and key stakeholders come together to collaborate and develop the long-term game plan to deploy offshore wind infrastructure off of the California coast.

SB 286 requires the Coastal Commission to bring the California Department of Fish and Wildlife, the State Lands Commission, the Ocean Protection Council, representatives from the commercial fishing industry, representatives from the offshore wind industry, federal agencies, labor, Native American tribes and other community leaders together over the next two years. This working group will create a statewide standard to ensure offshore wind development is expedited and will develop data-driven strategies to avoid and minimize impacts to ocean fisheries and to the maximum extent possible, mitigate for unavoidable impacts.

SB 286 was signed by Governor Newsom today and will become law January 1, 2024.

—Submitted

SACRAMENTO

Landmark legislation banning dangerous food additives signed by Gov. Newsom

On Friday, Gov. Gavin Newsom signed first-of-its-kind legislation to prohibit the use of four dangerous chemicals in processed foods and drinks sold in California. Authored by Assemblymember Jesse Gabriel (D-Encino), Assembly Bill (AB) 418 — the California Food Safety Act — would prohibit the manufacture, sale, or distribution in California of any food product containing Red Dye No. 3, Potassium Bromate, Brominated Vegetable Oil, or Propyl Paraben. The use of these chemicals has already been banned in the 27 nations in the European Union (EU) as well as many other

countries due to scientific research linking them to significant health harms, including cancer, reproductive issues, and behavioral and developmental issues in children.

“Things like this aren’t partisan. They’re common sense,” said former Governor and sports and fitness icon Arnold Schwarzenegger, who endorsed AB 418 in his daily Pump Club Newsletter. “I’m a small government guy. But I’ve also seen that sometimes, in a world where every big industry has an army of lobbyists, and our kids have no one fighting for them, government has to step in.”

AB 418 would not ban any products; it would instead require companies to make modifications to products sold in California and likely prompt a nationwide transition to safer alternatives.

“AB 418 is the most important food safety bill in more than a decade and its passage is a historic victory for protecting kids and families from dangerous food chemicals,” said Scott Faber, Senior Vice President for Government Affairs at the Environmental Working Group.

“We’ve known for years that the toxic chemicals banned under California’s landmark new law pose serious risks to our health,” said Brian Ronholm, director of food policy for Consumer Reports. “California has taken an important stand for food safety at a time when the FDA has failed to take action. Safer versions of food products that are available in other countries should be made available to U.S. consumers, too. By keeping these dangerous chemicals out of food sold in the state, this groundbreaking law will protect Californians and encourage manufacturers to make food safer for everyone.”

Background on AB 418

Due to major flaws with the FDA approval process — which has allowed close to 99 percent of food chemicals to escape meaningful, independent review by the FDA — the U.S. has become a global outlier in food safety. Notably, all the chemicals in AB 418 are already banned in the 27 nations in the EU and many have been banned in many other countries. Many major brands and manufacturers — including Coke, Pepsi, Gatorade, and Panera — have voluntarily stopped using the additives that would be banned under AB 418 because of concerns about their impact on human health. One of these chemicals — Red Dye No. 3 — is already banned by the FDA for use in cosmetics but is somehow still allowed in food.

AB 418 was amended in the State Senate to remove titanium dioxide from the list of banned additives and to delay implementation of the bill until 2027, thereby giving food companies more than enough time to negotiate new contracts and phase in new recipes.

—Submitted

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